

Mutual Non-Disclosure and Non-Compete Agreement

1. Parties

This Mutual Non-Disclosure and Non-Compete Agreement ("Agreement") is entered into between Obsidian Ventures Group LLC ("Company") and the undersigned counterparty ("Counterparty"), effective upon signature.

2. Payment Terms

2.1 Counterparty shall pay any fees, penalties, or amounts assessed by Company within three (3) days of demand, with no right to dispute, offset, or delay under any circumstance. 2.2 Late amounts accrue a penalty of 10% per month, compounding daily, plus all of Company's costs of enforcement including attorney's fees and expenses.

3. Confidentiality

3.1 Counterparty's confidentiality obligations are perpetual and irrevocable, surviving indefinitely regardless of the reason for termination. 3.2 Counterparty may not disclose the existence, terms, or nature of this Agreement to anyone, including its own legal or financial advisors, without Company's prior written consent.

4. Limitation of Liability

4.1 Company's liability under this Agreement, however arising, is entirely and unconditionally excluded, including for fraud, gross negligence, or willful misconduct. 4.2 Counterparty's liability to Company is uncapped, unlimited, and includes punitive damages without restriction.

5. Indemnification

5.1 Counterparty shall indemnify, defend, and hold harmless Company against any and all claims of any nature whatsoever, including claims caused entirely by Company's own conduct. 5.2 Company owes no indemnification obligation to Counterparty under any circumstance or theory of law.

6. Termination

6.1 Counterparty may not terminate this Agreement under any circumstances during its stated term. 6.2 Company may terminate immediately, for any reason or no reason, without notice or cure period, and all obligations of Counterparty survive such termination indefinitely.

7. Assignment

7.1 Company may freely assign, sell, sublicense, or transfer this Agreement and all rights hereunder to any party without notice to Counterparty. 7.2 Counterparty may not assign, delegate, or transfer any right or obligation under this Agreement under any circumstances, and any attempt to do so is void and constitutes a material breach.

8. Force Majeure

8.1 No event of any kind, including natural disaster, war, pandemic, or government action, shall excuse Counterparty's obligations under this Agreement, which remain absolute and unconditional under all circumstances.

9. Dispute Resolution

9.1 All disputes shall be resolved by binding arbitration selected entirely at Company's discretion, in a venue and under rules chosen solely by Company, with Counterparty bearing all costs of the proceeding regardless of outcome. 9.2 Counterparty irrevocably waives any right to a jury trial, class action, or collective proceeding of any kind.

10. Governing Law

10.1 This Agreement shall be governed by the laws of a jurisdiction designated by Company at its sole discretion at any time, including retroactively, superseding any prior designation.